

Amendment No. 1 to HB2466

Farmer
Signature of Sponsor

AMEND Senate Bill No. 2462*

House Bill No. 2466

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 4-1-425, is amended by adding the following as a new subsection:

(g)

(1) Notwithstanding another law to the contrary, the clerks of all courts exercising criminal jurisdiction within this state shall provide to the district attorneys general conference such data and information as is reasonably necessary to enable the conference to comply with the reporting requirements imposed by this section.

(2) A clerk may satisfy the requirements of subdivision (g)(1) by any of the following methods:

(A) Providing the required data in Microsoft Excel format or other tabulated spreadsheet format suitable for aggregation, analysis, and reporting;

(B) Providing secure, read-only electronic access through a portal or other technological means sufficient to permit authorized personnel of the conference to compile the required data; or

(C) Authorizing the clerk's case management system provider to furnish the required data directly to the conference, including, but not limited to, data generated through the Tennessee court information system (TnCIS) or a successor system.

(3) The district attorneys general conference shall reimburse any reasonable and necessary costs incurred by a clerk in complying with this subsection (g); provided, however, that the reimbursement must not include compensation for additional personnel hired by the clerk for the purpose of complying with subdivision (g)(1).

(4) This subsection (g) does not require a clerk to create data that is not otherwise maintained in the ordinary course of business, but only to provide access to or extraction of existing data.

SECTION 2. Tennessee Code Annotated, Section 8-7-314, is amended by designating the current language as subsection (a) and adding the following new subsections:

(b)

(1) Notwithstanding another law to the contrary, the clerks of all courts exercising criminal jurisdiction shall provide to the district attorney general in the clerk's judicial district such data and information as is reasonably necessary to enable the district attorney general to comply with the reporting requirements imposed by this section or any other provision of law requiring the submission of prosecution statistics or related data.

(2) A clerk may satisfy the requirements of subdivision (b)(1) by any of the following methods:

(A) Providing the required data in Microsoft Excel format or other tabulated spreadsheet format suitable for compilation and analysis;

(B) Providing secure, read-only access through an electronic portal or other technological means sufficient to permit authorized personnel to compile the required data; or

(C) Authorizing the clerk's case management software provider to furnish the required data directly, including, but not limited to, data

generated through the Tennessee court information system (TnCIS) or a successor system.

(c)

(1) The district attorneys general conference shall reimburse any reasonable and necessary costs incurred by a clerk in complying with subsection (b); provided, however, that the reimbursement must not include compensation for additional personnel hired by the clerk for the purpose of complying with subdivision (b)(1).

(2) This section does not require a clerk to create data that is not otherwise maintained in the ordinary course of business, but only to provide access to or extraction of existing data.

SECTION 3. This act takes effect upon becoming a law, the public welfare requiring it.